

19NWCV00885 19NWCV00885

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Case Number: 19NWCV00885 Hearing Date: July 2, 2026 Dept: SED

LAKEVIEW LOAN

SERVICING, LLC V. NATALIE HERNANDEZ, ET AL.

CASE NO.: 19NWCV00885

HEARING: 07/02/2026 @

9:30 a.m.

#6

TENTATIVE ORDER

Defendant Natalie Hernandez's
motion to vacate default judgment is DENIED.

Moving party to give notice.

Defendant Natalie Hernandez (Hernandez)
moves for an order vacating the default judgment entered on July 18, 2025, on
the grounds that the judgment is void due to lack of proper service and lack of
personal jurisdiction. Hernandez also
seeks a stay of enforcement pending hearing on this motion.

Background

In November 2019, Plaintiff
Lakeview Loan Servicing (Lakeview) filed a foreclosure action against Hernandez,
Jayreiner Mangahis Hernandez, Gilberto Herrera, Foundation Finance Company LLC,

State Farm Mutual Automobile Insurance Company, and Does 1 through 50, inclusive (collectively, Defendants).

On February 21, 2020, at Lakeview's request, default was entered to Hernandez.

On October 9, 2023, Hernandez filed a "motion to set aside the judgment and any default, and to quash any writ of possession/execution."

On January 23, 2024, Lakeview requested entry of default judgment against Hernandez.

On February 2, 2024, default judgment was entered against Defendants.

On April 26, 2024, the Court denied Hernandez's motion to set aside the default or default judgment entered on February 21, 2020, but it granted the motion as to the default judgment entered on February 2, 2024.

On August 14, 2024, Lakeview again requested entry of default judgment.

On October 25, 2024, Hernandez filed a second motion to set aside or vacate default.

On March 17, 2025, the Court denied Hernandez's motion.

On April 8, 2025, Hernandez appealed the denial of her motion.

On July 18, 2025, the Court held a default prove up hearing and entered a default judgment of foreclosure and order of sale in favor of Lakeview against Hernandez.

On April 13, 2026, Hernandez's appeal was dismissed on the grounds that there was no judgment at the time Hernandez filed her notice of appeal from the denial order.

On April 14, 2026, Hernandez
filed the instant motion to vacate void judgment.

Legal Standard

Code of Civil Procedure (CCP) section

473(d) provides that “[t]he court may . . . on motion of either party after notice to the other party, set aside any void judgment or order.” (CCP, § 473(d).) In circumstances where a court lacks jurisdiction, a judgment or order is void.

(People v. American Contractors Indemnity Co. (2004) 33 Cal.4th

653, 660.) Where a court exceeds its

jurisdiction, then “the order is merely voidable, and it cannot be collaterally

attacked once it is final, i.e., after the time to appeal has run.” (Torjesen v. Mansdorf (2016) 1

Cal.App.5th 111, 116.)

Timeliness

All of Hernandez’s moving papers,

including declarations, were due on or before June 9, 2026. (CCP § 1005(b) [“all moving and supporting

papers shall be served and filed at least 16 court days before the hearing”].) Hernandez filed a supplemental declaration on June 12, 2026. Accordingly, the supplemental

declaration is untimely and the Court declines to consider it in its tentative ruling.

Analysis

Hernandez seeks an order vacating

the July 18, 2025 default judgment on the ground that it is void due to lack of

proper service and lack of personal jurisdiction pursuant to CCP section

473(d). Hernandez contends that she was

never personally served with the summons and complaint in this action and did not receive notice of the lawsuit before entry of default.

The Court notes that, although

Hernandez characterizes the instant motion as one to vacate the July 18, 2025

default judgment as void pursuant to section 473(d), the motion is predicated

on the same jurisdictional challenge previously asserted in Hernandez’s prior

motions to set aside the default and default judgment. In each of those motions, Hernandez argued

that she was never properly served with the summons and complaint, that the

Court therefore lacked personal jurisdiction, and that the default and resulting judgment were void. Those arguments have already been considered and rejected by the Court.

On April 26, 2024, the Court denied Hernandez's motion to set aside the February 21, 2020 default, concluding that Hernandez failed to establish any statutory or equitable basis for relief. (See April 26, 2024 Minute Order.) Although the Court vacated the February 2, 2024 default judgment because it had been entered while Hernandez's motion remained pending, the Court expressly denied relief from the underlying default, finding that Hernandez had offered no argument or evidence demonstrating that the default judgment was void on its face and had otherwise failed to establish entitlement to relief under CCP sections 473, 473.5, or the Court's equitable powers. (Ibid.) The Court further held that the February 21, 2020 default would remain in effect and expressly authorized Plaintiff to seek entry of a new default judgment. (Ibid.) Thereafter, Hernandez filed a second motion to set aside or vacate the default and default judgment, again arguing that she had not been properly served and that the Court lacked jurisdiction. On March 17, 2025, the Court denied that motion in its entirety. (See March 17, 2025 Minute Order.)

Hernandez identifies no new admissible facts, changed circumstances, or intervening law that would warrant revisiting those prior determinations. Although Hernandez submitted a supplemental declaration in support of the instant motion, the declaration was untimely filed after the deadline for moving papers, and the Court declines to consider it. Accordingly, the instant motion presents no new evidentiary basis for concluding that the Court lacked personal jurisdiction or that the July 18, 2025 default judgment is void.

Although successive motions for relief under section 473 are not categorically barred, a party may not repeatedly relitigate the same grounds for relief without presenting new matter unavailable at the time of the prior motion. (*Rambush v. Rambush* (1968) 267 Cal.App.2d 734, 741-742.) Here, Hernandez identifies no new evidence, changed circumstances, or intervening authority that was unavailable when the Court denied her prior motions. Rather, the instant motion simply renews the same contention that the Court lacked personal jurisdiction because she was not properly served.

Nor does the rule permitting a void judgment to be challenged "at any time" authorize perpetual successive motions raising the identical jurisdictional challenge. As the court observed in *Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, once a court has decided the jurisdictional issue on the merits, subsequent attempts to relitigate the same issue implicate principles of claim and issue preclusion because "somewhere along the line, litigation must cease." (Id. at 1022, fn. 13.)

Hernandez has presented no new admissible evidence or legal basis warranting reconsideration of the Court's prior rulings. Accordingly, she has failed to establish that the July 18, 2025 default judgment is void within the meaning of Code of Civil Procedure section 473, subdivision (d).

Conclusion

Based on the foregoing, Defendant Natalie Hernandez's motion to vacate default judgment is DENIED.